



Venezuela

Detailed Assessment Results

I. Legal Frameworks **3.10 / 5**

II. Mining policies **1.23 / 5**

III. Investigation and enforcement **2.23 / 5**

Total score 6.56 / 15.00



Each coloured segment represents one dimension. Grey shows remaining headroom to 15.

About this scorecard

The **Amazon Mining Policy Scoreboard**, led by Amazon Conservation Association, evaluates national gold mining governance across Amazon countries. Each country is assessed across three dimensions — **Legal Frameworks**, **Mining Policies**, and **Investigation & Enforcement** — each worth up to 5 points, for a maximum total of **15 points**. Within each dimension, five categories (each normalised 0–1) are evaluated through multiple criteria.

Venezuela received a total score of **6.56 out of 15.00**, ranking **8th out of 8 Amazon countries** assessed. The pages that follow present the full set of criteria, justifications, and sources organised by dimension and category.

■ Legal Frameworks

■ Mining policies

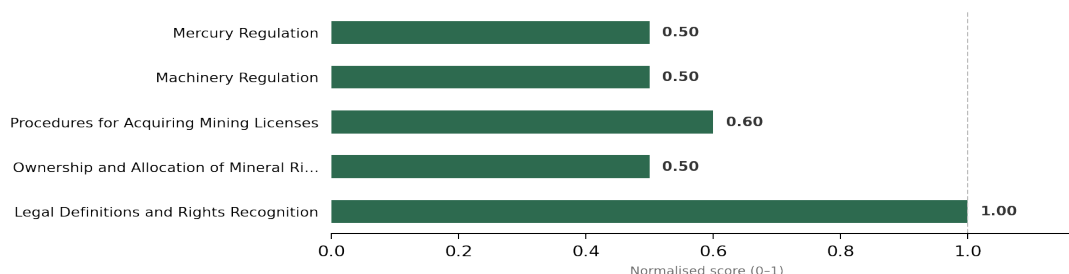
■ Investigation and enforcement

This assessment was produced by Amazon Conservation as part of the [Amazon Mining Policy Scoreboard](#), a component of [Amazon Mining Watch](#). The assessment for each country was conducted with support from, respectively: Conservación Amazonica – ACEAA (Bolivia), Instituto Centro de Vida (Brazil), Fundación para la Conservación y el Desarrollo Sostenible (Colombia), Fundación Ecociencia (Ecuador), Amazon Conservation Team (Guyana and Suriname), Conservación Amazonica – ACCA (Peru), and SOS Orinoco (Venezuela).

I. Legal Frameworks

3.10 / 5.00

Category scores



A. Legal Definitions and Rights Recognition

Score: 1.00 / 1.00

Does national legislation clearly define the legal conditions under which gold mining is permitted, and distinguish them from activities considered illegal?

1.0

Criterion 1

Justification

Current Venezuelan legislation—comprising the Organic Law Decree reserving to the State the Exploration and Exploitation of Gold and other Strategic Minerals (Decree No. 2,165, of December 30, 2015), the Mining Law (1999), and its General Regulations (2001)—establishes the conditions under which gold mining can be carried out legally. Any mining activity carried out without state participation, without official registration, or that fails to comply with the environmental or commercialization conditions established by law is considered illegal.

Conditions for legality: Exploitation is reserved to the State. Private participation is only possible through partnerships with the State via Joint Ventures or through the formation of Strategic Alliances, signed between the State and groups of people organized in companies or other associative forms permitted by law, for the execution of primary and related activities in the exploitation of gold and other strategic minerals, with the exception of marketing, which is exclusively reserved for the State. Activities considered illegal: Exploration and exploitation activities carried out without authorization are illegal; that is, those carried out by individuals who are not part of a Strategic Alliance, who are not registered in the Single Mining Registry, or who violate environmental regulations and/or the inspections of the relevant Ministry.

Sources

Decree No. 295 with the Rank and Force of a Mining Law. Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999. Decree No. 2,165 with the Rank, Value and Force of an Organic Law that Reserves to the State the Activities of Exploration and Exploitation of Gold and other Strategic Minerals. Official Gazette of the Bolivarian Republic of Venezuela No. 6,210 Extraordinary of December 30, 2015. Decree No. 1234. General Regulations of the Mining Law. Official Gazette of the Bolivarian Republic of Venezuela 37,155 of March 9, 2001.

Does national legislation provide a clear legal definition of artisanal and small-scale mining (ASM), distinct from large-scale or industrial mining?

1.0

Criterion 2

Justification

Current Venezuelan mining legislation distinguishes between small-scale, medium-scale, and large-scale mining. While the concept of artisanal mining is included in the 1999 Mining Law—whose Article 82 defines it as characterized by personal and direct labor in the exploitation of alluvial gold and diamonds, using simple, portable, manual equipment, rudimentary extraction and processing techniques, and which can only be carried out by Venezuelan citizens—this modality appears to disappear in Decree No. 2,165, the most recent and highest-ranking regulation (Organic Law).

This decree not only fails to separate artisanal mining from small-scale mining, considering it part of the latter, but also eliminates the possibility of personal or subsistence mining, leaving the use of rudimentary and portable tools as the sole differentiating criterion—a criterion that loses practical relevance within the alliance framework defined by said Organic Law as the only means of formally carrying out the activity.

Note: The concept of MAPE, as such, is not contemplated in Venezuelan legislation.

Sources

Decree No. 295 with the Rank and Force of a Mining Law. Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999. Decree No. 2,165 with the Rank, Value and Force of an Organic Law that Reserves to the State the Activities of Exploration and Exploitation of Gold and other Strategic Minerals. Official Gazette of the Bolivarian Republic of Venezuela No. 6,210 Extraordinary of December 30, 2015.

Does the legal framework set distinct conditions or restrictions for mining activities in Indigenous territories, protected areas, mining exclusion zones and community lands, including provisions related to consent, well-informed prior consultation, or land tenure?

1.0

Criterion 3

Justification

The Venezuelan legal framework, both at the constitutional level and in special laws, establishes conditions, restrictions, and prohibitions for mining activities in these territorial areas.

Regarding Indigenous territories, it should be noted that the legislation does not recognize Indigenous "territories" in the strict sense, but rather "habitats and lands." These areas are currently undergoing demarcation, with few having been formally recognized by the State. Indigenous communities have demanded this demarcation, as stipulated in the Constitution (1999) and the Law on Demarcation and Guarantee of the Habitat and Lands of Indigenous Peoples (2001), as a mechanism to guarantee their right to collective ownership of their lands. For its part, the Organic Law of Indigenous Peoples and Communities (2005) establishes that any activity likely to directly or indirectly affect Indigenous peoples and communities must be consulted with them. Mining legislation, specifically Article 18 of Decree No. 2,165 (2015), reaffirms this principle by stating that the State will promote the effective participation of Indigenous peoples, communities, and organizations in matters regulated by this instrument, as well as in the formulation of public policies that affect them, when mining activities are carried out on Indigenous lands.

With respect to protected areas, the Venezuelan regulatory framework is even broader and more explicit: it expressly prohibits mining and other extractive activities within these zones. This legal framework encompasses Articles 127 and 128 of the Constitution, as well as the Partial Regulations of the Organic Law for the Management and Administration of National Parks and Natural Monuments (Decree No. 276 of 1989). It also includes the Law Approving the Washington Convention (1941), the Organic Law of the Environment, the Organic Law for Territorial Planning, the Environmental Criminal Law, the Wildlife Law, the Forestry, Soil and Water Law, the Biological Diversity Law, the Forestry Law, the Water Law, and the Environmental Protection Regulations, among others.

Note: The problem in Venezuela lies not in the absence of legislation, but in the State's ineffectiveness in enforcing it. For at least fifteen years, the Government itself has engaged in prevarication by omission, by not acting against malicious activities in these spaces, by evading the proper consultation with local populations and the current territorial planning, as well as by omitting the environmental and sociocultural impact assessment studies required by law as a prerequisite to the start of any activity likely to degrade the environment; or by directly promoting or tolerating the violation of these rules in protected areas.

Sources

Constitution of the Bolivarian Republic of Venezuela (1999). Official Gazette No. 5,453 (Extraordinary), March 24, 2000.

Article 12 states that mineral deposits belong to the Republic, being public domain property, inalienable and imprescriptible. Article 156 establishes the competence of the National Public Power over the regulation and administration of mines. Articles 127, 128, and 129 stipulate the proper respect for protected areas and fundamental aspects of environmental law and land-use planning. Articles 119 through 126 of the Constitution enshrine the rights of indigenous peoples in Venezuela. Law on the Demarcation and Guarantee of the Habitat and Lands of Indigenous Peoples: Official Gazette of the Bolivarian Republic of Venezuela No. 37,118 of January 12, 2001. Organic Law of Indigenous Peoples and Communities (LOPCI). Official Gazette of the Bolivarian Republic of Venezuela No. 38,344 of December 27, 2005. Decree No. 2,165, with the Rank, Value, and Force of an Organic Law, reserving to the State the Activities of Exploration and Exploitation of Gold and other Strategic Minerals. Official Gazette of the Bolivarian Republic of Venezuela No. 6,210 Extraordinary of December 30, 2015. Law Approving the Convention for the Protection of Flora, Fauna, and Natural Scenic Beauty of the Countries of America. Official Gazette of the Republic of Venezuela No. 20,643 of November 13, 1941. Organic Law for Territorial Planning. Official Gazette of the Republic of Venezuela No. 3,238 Extraordinary. August 11, 1983. Organic Law of the Environment. Official Gazette of the Bolivarian Republic of Venezuela No. 5,833 Extraordinary of December 22, 2006. Environmental Criminal Law. Official Gazette of the Bolivarian Republic of Venezuela Extraordinary No. 39,913 of May 2, 2012. Wildlife Law, Official Gazette of the Republic of Venezuela No. 29,289. August 11, 1970. Forestry, Soil and Water Law (the current articles), Official Gazette of the Republic of Venezuela No. 1,004 Extraordinary. January 26, 1966. Law on Biological Diversity, Official Gazette of the Bolivarian Republic of Venezuela No. 5,468 Extraordinary. May 24, 2000. Law on Forests. Official Gazette of the Bolivarian Republic of Venezuela No. 40,222 dated August 6, 2013. Water Law, Official Gazette of the Bolivarian Republic of Venezuela No. 38,595, dated January 2, 2007. Decree No. 276 dated June 7, 1989, which establishes the Partial Regulations of the Organic Law for Territorial Planning on the Administration and Management of National Parks and Natural Monuments. Official Gazette of the Republic of Venezuela No. 4,106 Extraordinary of June 9, 1989. Decree No. 1,221 of November 2, 1990, which establishes the Regulations on Environmental Protection. Its purpose is to establish the rules that will govern the organization, operation, powers, and coordination of the agencies and officials for the exercise of Environmental Protection. Official Gazette of the Republic of Venezuela No. 34,678 of March 19, 1991.

B. Ownership and Allocation of Mineral Rights

Score: 0.50 / 1.00

Does the law allocate ownership rights over minerals, including gold?

0.0

Criterion 4

Justification

In Venezuela, ownership of minerals is the exclusive property of the State. The Constitution establishes that all mineral and hydrocarbon deposits within the national territory, regardless of their nature, belong to the Republic, and that this ownership is inalienable and imprescriptible. The exploration and exploitation of gold and other strategic minerals has been reserved for the State or for associations with majority state participation, as stipulated by Decree No. 2,165 of 2015.

Sources

Decree No. 2,165, with the Rank, Value and Force of an Organic Law, reserving to the State the activities of exploration and exploitation of gold and other strategic minerals. Official Gazette of the Bolivarian Republic of Venezuela No. 6,210 Extraordinary of December 30, 2015.

Are there transparent and publicly accessible registries of mining titles, licenses, or concessions for ASM (mining cadastres)?

0.0

Criterion 5

Justification

While a Single Mining Registry (RUM) exists, compiling information on miners, their associations, and the mine cadastre, it is for the exclusive internal use of the Ministry of People's Power for Ecological Mining Development and is not available for public consultation. In practice, these registries are neither transparent nor accessible; the government often invokes security and strategic value reasons to keep this information confidential, which opens the door to potential political manipulation.

Sources

Resolution No. 0010 of the Ministry of Popular Power for Ecological Mining Development, published in the Official Gazette of the Bolivarian Republic of Venezuela No. 41,396 of May 14, 2018

Is there an official and up-to-date mining registry that includes information allowing authorities to prevent overlapping concessions with existing rights, such as other titles, protected areas, or indigenous lands?

1.0

Criterion 6

Justification

The Ministry responsible for mining approved Resolution No. 0010 of May 14, 2018, which created the Single Mining Registry (RUM). According to information available on the official website, this registry operates through the platform called the Integrated System for the Management of Ecological Mining Development, designed to centralize the data of individuals or legal entities, public or private, that carry out mining, related, or auxiliary activities, although its stated purpose is to simplify procedures for miners before the State.

Sources

Resolution No. 0010 of the Ministry of Popular Power for Ecological Mining Development, published in the Official Gazette of the Bolivarian Republic of Venezuela No. 41,396 of May 14, 2018

Is there a formalization process in place for ASM workers operating without a formal permit, license and/or concession?

1.0

Criterion 7

Justification

The legal framework applicable to this process is Decree No. 2,165. However, it is imperative to point out that its implementation largely responds to political criteria: small-scale miners are offered future legalization as an incentive to join government-controlled mining brigades.

Until approximately 2019, the model promoted by government agencies was the cooperative; however, this scheme was modified. Article 25 of Decree No. 2,165 establishes the possibility of creating "mining brigades" for carrying out small-scale mining activities. In February 2025, the Partial Regulations of the Organic Law Decree that Reserves to the State the Activities of Exploration and Exploitation of Gold and other Strategic Minerals regarding Mining Brigades (Decree No. 5,097, of February 24, 2025) were approved, which regulate the operation of these brigades. Article 26 of

Decree No. 2,165 empowers these groups to carry out procedures and enter into service contracts in accordance with applicable legal provisions.

Sources

Decree No. 2,165, with the Rank, Value, and Force of an Organic Law, reserving to the State the activities of exploration and exploitation of gold and other strategic minerals. Official Gazette of the Bolivarian Republic of Venezuela No. 6,210 Extraordinary of December 30, 2015. Decree No. 5,097, Partial Regulation of the Decree with the Rank, Value, and Force of an Organic Law reserving to the State the activities of exploration and exploitation of gold and other strategic minerals regarding Mining Brigades, dated April 24, 2025.

C. Procedures for Acquiring Mining Licenses

Score: 0.60 / 1.00

Are there clear procedures for acquiring rights on ASM for gold?

1.0

Criterion 8

Justification

The acquisition of rights to engage in small-scale mining—a modality that includes artisanal mining—is carried out through a mechanism that allows small-scale miners to partner with the State to legally exploit gold resources. This mechanism consists of forming Strategic Production Alliances with the State, within which environmental regulations, workplace safety standards, and the elimination of intermediaries are established, with the aim of selling the extracted gold directly to the Central Bank of Venezuela.

The procedure comprises the following stages:

Formalization: Small-scale miners must organize themselves into cooperatives, mining brigades, or other associative forms of what is known as "people's power."

Strategic Alliances: They must formalize a request for intent to form a strategic alliance with the Venezuelan State, submitting the required documentation to the corresponding state-owned company, primarily the Venezuelan Mining Corporation (CVM).

Technical Documentation: A Descriptive Mining Report is required, which includes: information about the organization; territorial and geographical aspects; Mining and processing plan using environmentally friendly technologies; economic and marketing aspects; mine closure plan; and occupational safety measures. **Sale and Marketing:** The produced mineral must be sold to the State, complying with the transport guidelines and the sworn declaration of origin. **Oversight:** The Ministry of People's Power for Ecological Mining Development, along with other State entities, must carry out oversight, monitoring, surveillance, and control to guarantee responsible mining and environmental remediation.

Sources

Decree No. 2,165, with the Rank, Value, and Force of an Organic Law, reserving to the State the activities of exploration and exploitation of gold and other strategic minerals. Official Gazette of the Bolivarian Republic of Venezuela No. 6,210 Extraordinary of December 30, 2015. Decree No. 5,097, Partial Regulation of the Decree with the Rank, Value, and Force of an Organic Law reserving to the State the activities of exploration and exploitation of gold and other strategic minerals regarding Mining Brigades, dated April 24, 2025.

Is there a legal framework that requires the buyer of gold to verify its legal origin?

1.0

Criterion 9

Justification

The legal framework that reserves gold mining rights to the State—either directly or through joint ventures or strategic alliances—and mandates that all production be sold to the State, establishes a monopoly that, in theory, guarantees the legality of the gold acquired. In this system, the ultimate buyer is the State, so, formally, there should be no gold of illegal origin outside of what the State purchases.

Sources

Decree No. 2,165, with the Rank, Value and Force of an Organic Law, reserving to the State the activities of exploration and exploitation of gold and other strategic minerals. Official Gazette of the Bolivarian Republic of Venezuela No. 6,210 Extraordinary of December 30, 2015.

Are specific environmental licensing procedures established for ASM, including simplified or tailored requirements?

0.0

Criterion 10

Justification

The execution of any activity likely to degrade the environment — such as mining, regardless of its scale or modality — requires mandatory completion of an Environmental Impact Assessment Study, in accordance with the provisions of Decree No. 1,257: Standards on the Environmental Assessment of Activities Likely to Degrade the Environment (1996).

Sources

Decree No. 1,257 Regulations on Environmental Assessment of Activities Likely to Degrade the Environment. Official Gazette of the Republic of Venezuela No. 35,946 of April 25, 1996.

Is there a national, regional, or state government entity that oversees compliance with the implementation of artisanal and small-scale mining (ASM) operations' commitments in accordance with mining environmental licenses?

1.0

Criterion 11

Justification

The Ministries of People's Power for Ecological Mining Development (MPPDME) and Ecosocialism (MINEC) are responsible for managing compliance with mining and environmental regulations, with the support of the Bolivarian National Guard (GNB) in matters of security, activity control, and environmental protection. Technical mining oversight is the responsibility of the National Mining Inspection and Oversight Service (SENAFIM), a support body of the MPPDME, which exercises control over primary, related, and auxiliary mining activities through inspections at their various stages. The purpose of this oversight is to guarantee the rational use of mineral resources, contribute to environmental protection, and ensure the collection of revenues that strengthen state governance. This oversight framework is applicable to what in Venezuela constitutes the equivalent of artisanal and small-scale mining (ASM).

Sources

Organic Law of the Environment. Official Gazette of the Bolivarian Republic of Venezuela No. 5,833 Extraordinary of December 22, 2006. Criminal Law of the Environment. Official Gazette of the Bolivarian Republic of Venezuela Extraordinary No. 39,913 of May 2, 2012.

Decree No. 4,182 Creation of the National Mining Inspection and Oversight Service (SENAFIM) attached to the Ministry of People's Power for Ecological Mining Development. Official Gazette of the Bolivarian Republic of Venezuela No. 41856 of April 7, 2020.

Are mining concessions or licenses granted for a fixed period with mandatory reassessment before extension? *0.5 may be given in cases where the reassessment is mandatory, even when there is no fixed period for the mining concession

1.0

Criterion 12

Justification

Decree No. 2,165 (2015) establishes the area and duration of mining activities for both large-scale and small-scale mining operations.

For large-scale operations, the mining period may not exceed twenty (20) years, extendable for a maximum of two periods of up to ten (10) years each.

For small-scale mining, the mining period may not exceed ten (10) years, extendable for a maximum of two periods of two (2) years each.

In both cases, extensions must be requested one (1) year prior to the expiration of the corresponding period, for analysis, approval, or denial by the Ministry with jurisdiction over mining matters.

Sources

Decree No. 2,165, with the Rank, Value and Force of an Organic Law, reserving to the State the activities of exploration and exploitation of gold and other strategic minerals. Official Gazette of the Bolivarian Republic of Venezuela No. 6,210 Extraordinary of December 30, 2015.

D. Machinery Regulation

Score: 0.50 / 1.00

Is the use of machinery in ASM subject to regulation and licensing?

1.0

Criterion 13

Justification

In Venezuela, the use of machinery and equipment in mining is regulated, primarily as a criterion for classifying activities according to their scale: artisanal, small, medium, or large-scale mining. Likewise, the import, use, and transport of machinery are subject to the issuance of permits, transport documents, and equipment inventories, under the supervision of the Mining Oversight Authority.

Sources

Decree No. 295 with the Rank and Force of a Mining Law. Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999. Decree No. 2,165 with the Rank, Value and Force of an Organic Law that Reserves to the State the Activities of Exploration and Exploitation of Gold and other Strategic Minerals. Official Gazette of the Bolivarian Republic of Venezuela No. 6,210 Extraordinary of December 30, 2015. Decree No. 1234. General Regulations of the Mining Law. Official Gazette of the Bolivarian Republic of Venezuela 37,155 of March 9, 2001.

Are environmental impact assessments (EIAs) required for mechanized ASM operations?

1.0

Criterion 14

Justification

The development of any mining activity —regardless of the machinery or technology used— requires the preparation and prior approval of an Environmental and Social Impact Study.

Sources

Organic Law of the Environment. Official Gazette of the Bolivarian Republic of Venezuela No. 5,833 Extraordinary, December 22, 2006.

Decree 1257: Regulations on activities likely to degrade the environment. Official Gazette 35946, April 25, 1996.

Decree No. 295 with the Rank and Force of Law on Mines. Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary, September 28, 1999. Environmental Criminal Law. Official Gazette of the Bolivarian Republic of Venezuela Extraordinary No. 39,913, May 2, 2012.

Organic Law for Territorial Planning. Official Gazette of the Republic of Venezuela No. 3,238 Extraordinary, August 11, 1983.

Are there governmental controls on the import, sale, or leasing of mining machinery?

1.0

Criterion 15

Justification

The controls are primarily applied when machinery is imported under tax advantages or privileges. Once declared, the equipment becomes subject to the control of the National Mining Authority.

Sources

Decree No. 295 with the Rank and Force of Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999. Decree No. 1234. General Regulations of the Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela 37,155 of March 9, 2001.

Is there a national or subnational registry for heavy machinery used in mining?

0.0

Criterion 16

Justification

As part of fulfilling its duties, the National Mining Inspection and Oversight Service (SENAFIM) and its Regional Technical Inspectorates likely maintain a non-public registry of each mining operator's machinery and equipment. Operators are obligated to maintain and periodically report to the relevant Ministry an inventory of equipment, movable and immovable property, tangible and intangible assets, facilities, and works acquired in the course of mining activities, in accordance with current regulations. In short, although such a registry is not explicitly defined in the regulations, the obligation to maintain it exists.

Sources

Decree No. 4.182 Creation of the National Mining Inspection and Oversight Service (SENAFIM) attached to the Ministry of Popular Power for Ecological Mining Development. Official Gazette of the Bolivarian Republic of Venezuela No. 41856 of April 7, 2020.

Are there transparent and publicly accessible registries or databases of licenses or permits granted for the use of machinery in ASM operations?

0.0

Criterion 17

Justification

There is no public access to the licenses or permits granted for the use of machinery. Generally speaking, all information related to mining activities is considered restricted, under the pretext of national security reasons.

Sources

Not applicable

Are operators required to equip heavy machinery with GPS or other tracking devices for monitoring purposes?

0.0

Criterion 18

Justification

There is no regulatory provision that explicitly establishes the obligation to use tracking devices on mining machinery.

Sources

Not applicable

E. Mercury Regulation

Score: 0.50 / 1.00

Is mercury import, sale, and use regulated under national law?

1.0

Criterion 19

Justification

The use of mercury in mining has been subject to multiple prohibitions. In 1991, Decree No. 1,740—still in force—prohibited its use in gold extraction and processing operations. More recently, Decree No. 2,412 of 2016 extended the prohibition to the use, possession, and transport of mercury in the context of mining activities.

Sources

Decree No. 1740 prohibits the use of mercury in the extraction and preparation of gold-bearing material, both in land-based operations and on rafts. Official Gazette of the Republic of Venezuela No. 34703 of July 26, 1991.

Decree No. 2412 prohibits the use, possession, storage, and transport of mercury (Hg) as a method of obtaining or treating gold and any other metallic or non-metallic mineral, in all stages of mining activity carried out within the national territory. Official Gazette of the Bolivarian Republic of Venezuela No. 40960 of August 5, 2016.

Are there specific restrictions or bans on mercury use in ASM?

1.0

Criterion 20

Justification

The use of mercury in mining has been prohibited in Venezuela since 1991; its use, possession and transport have been prohibited since 2016 in the context of mining activities.

Sources

Decree No. 1740 prohibits the use of mercury in the extraction and preparation of gold-bearing material, both in land-based operations and on rafts. Official Gazette of the Republic of Venezuela No. 34703 of July 26, 1991.

Decree No. 2412 prohibits the use, possession, storage, and transport of mercury (Hg) as a method of obtaining or treating gold and any other metallic or non-metallic mineral, in all stages of mining activity carried out within the national territory. Official Gazette of the Bolivarian Republic of Venezuela No. 40960 of August 5, 2016.

Is there a system for tracking the origin, distribution, and final use of mercury?

0.0

Criterion 21

Justification

The legally imposed oversight obligations of the Venezuelan state should allow for the detection of mercury use and the monitoring of its distribution and origin. However, there are no public records indicating that these actions are being carried out effectively. Mercury continues to be widely used in mining activities, and the government is not taking

effective measures to prevent its trade.

Sources

Not applicable

Are there procedures in place for the seizure, transport, and final disposal of confiscated mercury, especially following operations against illegal gold mining?

0.0

Criterion 22

Justification

There is no information confirming the existence of public, transparent, and systematic protocols for the seizure, transport, and safe final disposal of mercury confiscated in operations against illegal gold mining. However, mining oversight agencies and those responsible for conducting operations against illegal mining are obligated to properly dispose of mercury and other hazardous substances, in accordance with Decree No. 2,635 of 1998, which regulates the handling and treatment of hazardous substances in Venezuela.

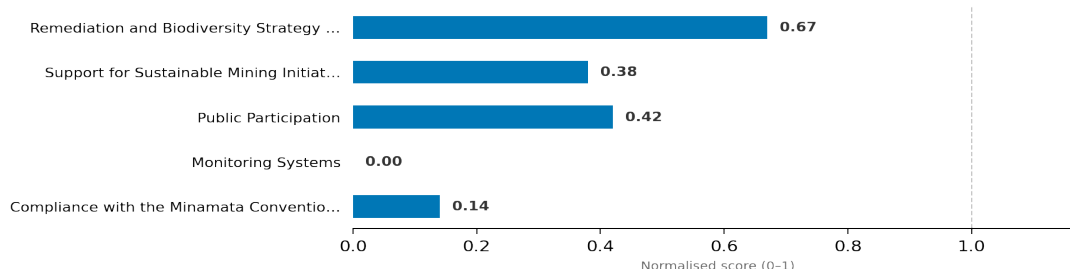
Sources

Decree No. 2635 Regulations for the Control of the Recovery of Hazardous Materials and the Management of Hazardous Waste. Official Gazette of the Republic of Venezuela No. 5,245 Extraordinary of August 3, 1998.

II. Mining policies

1.23 / 5.00

Category scores



F. Compliance with the Minamata Convention on Mercury

Score: 0.14 / 1.00

Is the country a signatory or Party to the Minamata Convention on Mercury?

1.0

Criterion 23

Justification

Venezuela signed the Minamata Convention, but has not ratified it.

Sources

Not applicable

Has the country ratified the Minamata Convention?

0.0

Criterion 24

Justification

Venezuela has not ratified the Minamata Convention, has not expressed interest in doing so, and has not taken any concrete actions to promote its implementation in the country.

Sources

Not applicable

Has the country submitted an initial assessment report as part of its participation in the Convention?

0.0

Criterion 25

Justification

No. Not applicable.

Sources

Not applicable

Has the country developed and submitted a National Action Plan (NAP) on mercury in accordance with the Convention?

0.0

Criterion 26

Justification

No. Not applicable.

Sources

Not applicable

Does the NAP explicitly mention forests or forest ecosystems in the context of mercury reduction strategies?

0.0

Criterion 27

Justification

No. Not applicable.

Sources

Not applicable

Does the NAP specifically refer to the Amazon region in its analysis, objectives, or proposed actions?

0.0

Criterion 28

Justification

No. Not applicable.

Sources

Not applicable

Does the NAP take into account intersectional approaches?

0.0

Criterion 29

Justification

No. Not applicable. (Note: Questions regarding the PAN refer to a National Mercury Action Plan under the Minamata Convention. Since Venezuela has not ratified the Convention, it does not have such an instrument, therefore the "Not applicable" category is relevant in all cases.)

Sources

Mining Law (1999) and Decree with the Rank, Value and Force of Organic Law that Reserves to the State the Activities of Exploration and Exploitation of Gold and other Strategic Minerals (Decree No. 2,165, of 12/30/15); It refers to a National Plan on Mercury within the scope of the Minamata Convention, therefore it does not apply.

Are there government-led monitoring systems for environmental and social impacts of ASM?

0.0

Criterion 30

Justification

While the government structure should exercise rigorous control over mining activities and their impacts—through SENAFIM, the Ministry of Ecosocialism, and the National Guard in its role as Environmental Protection Agency—there is no evidence that any reliable public monitoring system is in operation.

In April 2025, the Committee for Oversight and Control of Environmental Impacts was created as an inter-institutional coordination body. According to its stated objectives, this committee would develop standardized monitoring and follow-up protocols for critical areas such as mining, tourism, and agriculture. This committee would include the Superior Prosecutor's Office, the Environmental Protection Agency, the Socialist Fisheries Institute (INSOPESCA), and the Scientific, Criminal, and Forensic Investigations Corps (CICPC), under the coordination of the Ministry of Ecosocialism. However, almost a year after its announcement, there is no formal information confirming its operational status.

Sources*Not applicable***Is satellite or geospatial monitoring used to detect illegal or unlicensed ASM activities?**

0.0

Criterion 31

Justification

The Venezuelan government has not provided any information on this matter; there is reasonable doubt about the existence of such monitoring.

Sources*Not applicable***Can governmental satellite monitoring systems distinguish between artisanal, semi-mechanized, and mechanized mining activities?**

0.0

Criterion 32

Justification

The Venezuelan government has not provided any information on this matter; there is reasonable doubt about the existence of such monitoring.

Sources*Not applicable*

Is mercury concentration measured by the government in potentially affected water bodies, the food chain and/or populations?

0.0

Criterion 33

Justification

The limited publicly available data comes from academic studies and initiatives by non-governmental organizations. No information is available from the Venezuelan government on this matter; there is reasonable doubt as to whether such monitoring even exists.

Sources

Not applicable

H. Public Participation

Score: 0.42 / 1.00

Are there legal channels for civil society oversight or participation in monitoring and enforcement?

1.0

Criterion 34

Justification

According to current legislation, channels should exist to allow—and in some cases require—citizen participation in decision-making and the exercise of some social oversight of mining activities. However, as far as can be ascertained, no permanent or formalized mechanism exists for this purpose. The centralization of control within the government apparatus seriously hinders the effective exercise of any form of independent oversight by civil society.

Sources

Organic Law on Social Oversight, enacted in 2010 (Official Gazette of the Bolivarian Republic of Venezuela No. 6,011 Extraordinary, dated December 21, 2010)

Law Amending the Organic Law on Social Oversight (Official Gazette of the Bolivarian Republic of Venezuela No. 6,748 Extraordinary, dated June 9, 2023), which defines Social Oversight in Article 6 as a tool for safeguarding public assets.

Is there an official, accessible, safe, and functional channel for individuals or communities to file complaints related to ASGM activities or associated environmental impacts?

0.0

Criterion 35

Justification

There is no specific mechanism, anchored in any legal or regulatory norm, for receiving complaints related to artisanal and small-scale mining (ASM). While there is a general institutional willingness to receive complaints about the effects or illegal activities arising from mining, a specific channel for this sector has not been formalized.

It is worth noting that the presence of armed groups in mining areas actively discourages the filing of complaints through intimidation, threats, and even reprisals against those who attempt to report illegal activities related to mining.

Sources

Not applicable

Are there processes for public consultation with affected communities in mining-related decisions?

1.0

Criterion 36

Justification

There is a legal obligation to conduct prior consultation. However, this is rarely carried out in practice. When it is done, unfavorable positions regarding the promoted activities are often unknown or ignored.

Sources

Decree No. 295 with the Rank and Force of Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999. Decree No. 1234. General Regulations of the Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela 37,155 of March 9, 2001. Organic Law of Indigenous Peoples and Communities. Official Gazette of the Bolivarian Republic of Venezuela No. 38344 of December 27, 2005. Organic Law of the Environment. Official Gazette of the Bolivarian Republic of Venezuela No. 5,833 Extraordinary of December 22, 2006.

Are civil society complaints taken into account in the authorization or assessment processes of mining projects?

0.0

Criterion 37

Justification

Generally, when there are opinions or complaints from civil society regarding mining projects, these are dismissed.

Sources

Decree No. 295 with the Rank and Force of Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999. Decree No. 1234. General Regulations of the Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela 37,155 of March 9, 2001. Organic Law of Indigenous Peoples and Communities. Official Gazette of the Bolivarian Republic of Venezuela No. 38344 of December 27, 2005. Organic Law of the Environment. Official Gazette of the Bolivarian Republic of Venezuela No. 5,833 Extraordinary of December 22, 2006.

Do national programs on ASM include specific measures to support the participation of women, Indigenous peoples, or traditional communities?

1.0

Criterion 38

Justification

There is a legal obligation to guarantee adequate participation in all public projects affecting Indigenous communities, although not specifically in the mining sector. However, in practice, this process rarely goes beyond a formal procedure without binding consequences, and the opinions of communities are often ignored when they oppose the activity under consultation.

Sources

Decree No. 295 with the Rank and Force of Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999. Decree No. 1234. General Regulations of the Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela No. 37,155 of March 9, 2001. Organic Law of Indigenous Peoples and Communities. Official Gazette of the Bolivarian Republic of Venezuela No. 38344 of December 27, 2005

Are there protocols for the care and protection of victims and witnesses of crimes related to or derived from illegal mining? *0.5 may be given in cases there are general protection of witnesses and victims programs, but not specific for illegal mining

0.5

Criterion 39

Justification

There is no specific public protocol for victims linked to illegal mining. However, there is applicable general legislation: the Law Reforming the Law for the Protection of Victims, Witnesses, and Other Participants in Legal Proceedings, which safeguards those who collaborate with the Public Prosecutor's Office and guarantees their physical and psychological integrity. The current version was published in Official Gazette No. 6,645 Extraordinary of September 17, 2021.

Sources

Law on the Protection of Victims, Witnesses and Other Procedural Subjects. Official Gazette of the Bolivarian Republic of Venezuela No. 6,645 Extraordinary of September 17, 2021

I. Support for Sustainable Mining Initiatives

Score: 0.38 / 1.00

Are there public programs to support formalization through incentives to and capacity-building of ASM gold miners?

1.0

Criterion 40

Justification

In formal terms, the government's legal and rhetorical framework promotes the use of clean technologies; however, the effective implementation of support programs remains deficient and lacks transparency. The main state policy instrument aimed at regulating informal mining actors is the 2019-2025 National Mining Plan, managed by the Ministry of People's Power for Ecological Mining Development and Basic Industries and the Venezuelan Mining Corporation.

Sources

National Mining Plan 2019-2025

Are there accessible financing mechanisms promoted by the State to support sustainable practices as an alternative to unsustainable ASM gold mining?

1.0

Criterion 41

Justification

In formal terms, the government's legal and rhetorical framework promotes the use of clean technologies; however, the effective implementation of support programs remains deficient and lacks transparency. The applicable regulatory framework comprises the Constitution, the Mining Law, and the 2019-2025 Mining Sector Plan.

Sources

Constitution of the Bolivarian Republic of Venezuela (1999). Official Gazette No. 5,453 (Extraordinary), March 24, 2000.

Decree No. 1234.

General Regulations of the Mining Law. Official Gazette of the Bolivarian Republic of Venezuela No. 37,155 of March 9, 2001.

Mining Sector Plan 2019-2025

Are safer mercury-free technologies promoted through incentives or support programs?

1.0

Criterion 42

Justification

In formal terms, the government's legal and rhetorical framework promotes the use of clean technologies; however, the effective implementation of support programs remains deficient and lacks transparency. Venezuelan regulations promote the replacement of mercury with clean technologies, primarily under Joint Resolution No. 090 and No. 15-06-01 (2015) and the regulations of the Ministry of People's Power for Ecological Mining Development. These provisions establish the mandatory use of non-polluting technologies and include a commercial incentive for gold obtained through environmentally friendly methods, which can be sold directly to the Central Bank of Venezuela.

Sources

Joint Resolution No. 090 and No. 15-06-01 (2015)

Are women, traditional communities and Indigenous peoples specifically included in sustainable ASM initiatives?

0.0

Criterion 43

Justification

There is no reliable public information on the implementation of these initiatives.

Sources

Not applicable

Are there governmental programs to collaborate with NGOs, academic institutions, or international agencies to promote sustainable ASM practices?

0.0

Criterion 44

Justification

The government excludes organized civil society from the mining sector, although it promotes certain "initiatives of the mining population" at a discursive level. There is no known experience of collaboration with NGOs.

Regarding other actors, there is relevant information about the Piar Mission, a government program that, in theory, aimed to train, organize, and empower small-scale and artisanal miners, fostering safer practices and "ecological mining development," including references to so-called "eco-mining" as a mechanism to reduce environmental impact.

Some state mining entities have received support from international mechanisms, such as the UNDP's Small Grants Programme (SMGP) and the GEF (Global Environment Facility). Technological partnerships have also been established with institutions like CENDITEL, which collaborates on the development of open-source technologies and tools for organizational improvement within the sector.

Sources

Not applicable

Are there clear protection mechanisms for individuals working in areas of mining?

1.0

Criterion 45

Justification

There is a legal obligation to guarantee safe and healthy working conditions in mines, although in practice these provisions are not met and are ignored during government inspections.

Generally speaking, the Organic Law on Prevention, Working Conditions and Environment (LOPCYMAT) establishes obligations for all companies, regardless of sector, regarding the protection of their workers. The applicable legal framework includes the Constitution, ILO Convention No. 169 concerning Indigenous and Tribal Peoples (adopted in 1989 and ratified by Law No. 41 of December 17, 2000), the Organic Law on Labor, Workers and Working Women (LOTTT) (2012), and LOPCYMAT (2005).

Sources

Decree No. 295 with the Rank and Force of Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999. Decree No. 1234. General Regulations of the Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela 37,155 of March 9, 2001. Organic Law of Prevention, Conditions and Working Environment. Official Gazette No. 38236 of July 26, 2005.

Is there recognition or promotion of international certification schemes by the government?

0.0

Criterion 46

Justification

There is no public information on this matter.

Sources

Not applicable

Is there a government incentive for the adoption of gold certification?

0.0

Criterion 47

Justification

Since gold mining is monopolized by the Government, it has not raised the need to implement any type of external certification.

Sources

Not applicable

J. Remediation and Biodiversity Strategy Integration

Score: 0.67 / 1.00

Is ASM gold mining recognized in the country's National Biodiversity Strategy and Action Plan (NBSAP)?

0.0

Criterion 48

Justification

Artisanal or small-scale mining is not included in the National Biodiversity Strategy or its Action Plan. Mining is only mentioned once in the document, identifying it solely as a threat within the context of industrial mining. Venezuela's most recent National Strategy for the Conservation of Biological Diversity covers the period 2024-2030 and is managed by the Ministry of Popular Power for Ecosocialism (MINEC). Its legal basis is the Law on the Management of Biological Diversity, published in Official Gazette No. 39,070 on December 1, 2008.

Sources

Does the country have specific programs, targets, or funding mechanisms for ecosystem restoration in areas affected by ASM gold mining?

0.0

Criterion 49

Justification

From a discursive standpoint, there are initiatives focused primarily on reforestation efforts following the cessation of illegal mining and the development of the Orinoco Mining Arc project. These include Mission Tree, the Reforestation Plan for the Orinoco Mining Arc, and the Reforestation Campaign in Yapacana National Park—which includes aerial seeding. However, these initiatives not only have a limited scope but also lack an adequate scientific and technical foundation, as well as the necessary monitoring and support to achieve their objectives. They are characterized by grand announcements without real follow-up, few or no results, and a marked lack of transparency in spending and implementation.

Within the framework of the official programs for the Orinoco Mining Arc, for example, a plan has been proposed to recover approximately 8,800 hectares in Bolívar State for the period 2024-2025. However, in addition to covering less than 15% of the estimated degraded areas, these plans lack technical support to guarantee their effectiveness and include in their budgets the use of exotic forest species, which further compromises their ecological viability.

Sources

“Tree Mission”: <https://www.minec.gob.ve/mision-arbol-fortalece-capacidades-tecnicas-en-conservacion-de-semillas/>

“Reforestation Plan in the Orinoco Mining Arc”:

<https://rnnv.gob.ve/inicia-plan-de-reforestacion-del-ecosistema-en-el-arco-minero-del-orinoco/>

“Reforestation Campaign in Yapacana National Park (Sowing Seeds)”:

<https://www.raisg.org/es/radar/venezuela-empieza-plan-de-reforestacion-en-amazonas-y-bolivar/>

Are there requirements or guidance for restoration, remediation, or compensation for degraded areas?

0.0

Criterion 50

Justification

Each mining project must be based on a duly approved technical project that establishes environmental remediation and restoration measures through a Mine Closure Plan. There is no publicly available information demonstrating that any closure plan has been implemented by any mining company or group of small-scale miners. The legal basis consists of the Constitution, Decree No. 1,257 of April 25, 1996, and the specific authorizations for the impact on natural resources that must be granted by the ministry with environmental jurisdiction.

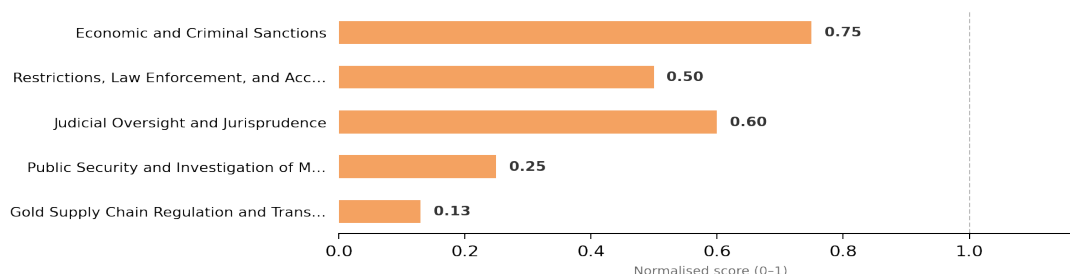
Sources

Constitution of the Bolivarian Republic of Venezuela (1999). Official Gazette No. 5,453 (Extraordinary), March 24, 2000. Organic Law of the Environment. Official Gazette of the Bolivarian Republic of Venezuela No. 5,833 Extraordinary of December 22, 2006. Decree 1257: Regulations on activities likely to degrade the environment. Official Gazette 35946, April 25, 1996. Decree No. 295 with the Rank and Force of Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999.

III. Investigation and enforcement

2.23 / 5.00

Category scores



K. Gold Supply Chain Regulation and Transparency

Score: 0.13 / 1.00

Does the country require formal registration of all actors in the ASM gold supply chain (miners, traders, and exporters)?

1.0

Criterion 51

Justification

The Mining Law and its Regulations require the registration of all entities engaged in mining and related activities. However, these records are not publicly available.

Sources

Decree No. 295 with the Rank and Force of Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999. Decree No. 1234. General Regulations of the Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela 37,155 of March 9, 2001.

Are there specific permits or procedures required for exporting ASM gold?

0.0

Criterion 52

Justification

The exploitation and commercialization of gold are centralized by the government. Small-scale miners are required to sell their entire production to the Central Bank of Venezuela (BCV). Under the 2014 Gold Law, Joint Resolution No. 090 and No. 15-06-01 of the Ministries of People's Power for Petroleum and Mining establishes that all individuals, companies, or forms of association that carry out gold exploration and exploitation activities within the national territory must sell all gold-bearing material obtained, in any of its forms, to the BCV through the centers designated by said institution (Official Gazette No. 40,692, dated June 30, 2015). The legal basis is Decree No. 2,165 (2015) and the regulations pertaining to the Central Bank of Venezuela.

Sources

Decree No. 2,165, with the Rank, Value, and Force of an Organic Law, reserving to the State the activities of exploration and exploitation of gold and other strategic minerals. Official Gazette of the Bolivarian Republic of Venezuela No. 6,210 Extraordinary, December 30, 2015. Joint Resolution No. 090 and No. 15-06-01 of the Ministry of People's Power for Petroleum and Mining. Official Gazette of the Bolivarian Republic of Venezuela No. 40692, June 30, 2015

Are files on ASM areas, including titles, licenses, embargoes, and monitored zones, available in open, updated formats compatible with geospatial analysis systems?

0.0

Criterion 53

Justification

Although the records exist, they are not publicly accessible.

Sources

Not applicable

Is there a strategy in place to ensure the traceability of gold from extraction to final sale?

0.0

Criterion 54

Justification

While the government monopoly and centralization formally mandate the sale of gold to the Central Bank of Venezuela—including registration and certification requirements, the formation of alliances, and mechanisms for the controlled collection of gold from small-scale miners—as declared traceability strategies, the reality falls significantly short of these objectives. Neither the origin of the gold nor the circumstances under which it was obtained are effectively recorded or publicly disclosed. Therefore, the quality and provenance of the gold are neither effectively verified nor monitored.

Sources

Decree No. 2,165, with the Rank, Value and Force of an Organic Law, reserving to the State the activities of exploration and exploitation of gold and other strategic minerals. Official Gazette of the Bolivarian Republic of Venezuela No. 6,210 Extraordinary of December 30, 2015.

Is disclosure of transactions between miners, traders, and exporters mandatory?

0.0

Criterion 55

Justification

With regard to gold, this obligation does not apply in the conventional sense, since the only legally permitted sale is to the Central Bank of Venezuela. No other financial institution may acquire gold directly from producers, nor are producers allowed to sell it to any other party.

Sources

Decree No. 2,165, with the Rank, Value and Force of an Organic Law, reserving to the State the activities of exploration and exploitation of gold and other strategic minerals. Official Gazette of the Bolivarian Republic of Venezuela No. 6,210 Extraordinary of December 30, 2015.

Does the legal framework require financial institutions to verify the legal provenance of gold-related transactions?

0.0

Criterion 56

Justification

Generally speaking, all financial transactions must demonstrate the origin of the funds, and any suspicious activity must be reported to the competent authority (SUDEBAN - Superintendency of Banking Sector Institutions). However, since the gold origination transactions are carried out directly between the miners and the Central Bank of Venezuela (BCV), the legality of subsequent transactions is presumed from that point onward.

Sources

Decree No. 2,165, with the Rank, Value and Force of an Organic Law, reserving to the State the activities of exploration and exploitation of gold and other strategic minerals. Official Gazette of the Bolivarian Republic of Venezuela No. 6,210 Extraordinary of December 30, 2015.

Is there a centralized digital/electronic registry for gold supply chain transactions accessible to regulatory authorities and civil society?

0.0

Criterion 57

Justification

There is no publicly available information on the transaction chain associated with the gold supply. All the information that should exist is centralized and for the exclusive use of the government entities involved.

Sources

Not applicable

Are there protocols for information sharing and joint enforcement with neighboring countries?

0.0

Criterion 58

Justification

There is no public information available to confirm this.

Sources

Not applicable

L. Public Security and Investigation of Mining-Related Crimes

Score: 0.25 / 1.00

Do public security bodies have specific strategies in place for safeguarding Indigenous and traditional communities against crimes related to mining in their territories?

0.0

Criterion 59

Justification

There are no specific strategies to prevent and protect Indigenous communities from mining-related crimes; in general, these are treated as common crimes, regardless of the territory in which they occur. However, Indigenous communities have a set of prerogatives established in the Organic Law of Indigenous Peoples and Communities, which sets forth clear procedures for carrying out any activity within their territories and habitats. In this regard, this Law includes preventative measures to avoid the development of mining activity in these areas and, consequently, reduce the likelihood of criminal acts.

Sources

Organic Law of Indigenous Peoples and Communities. Official Gazette of the Bolivarian Republic of Venezuela No. 38344 of December 27, 2005

Are there specialized police and prosecutor units for environmental crimes or illegal mining with effective coverage in critical areas?

1.0

Criterion 60

Justification

Environmental protection is carried out by the Bolivarian National Guard (GNB). In 2017, the Public Prosecutor's Office created the Directorate for Comprehensive Environmental Defense and Environmental Crime. The law also provides for the creation of the Mining Guard, responsible for state inspection, surveillance, and control over all mining activities—exploration, exploitation, transportation, and commercialization—an auxiliary body that also falls under the Bolivarian National Guard, the same force that performs environmental police functions.

Sources

Decree No. 295 with the Rank and Force of Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999. Organic Law of the Environment. Official Gazette of the Bolivarian Republic of Venezuela No. 5,833 Extraordinary of December 22, 2006. Criminal Law of the Environment. Official Gazette of the Bolivarian Republic of Venezuela Extraordinary No. 39,913 of May 2, 2012.

Is there a clear procedure for investigating crimes related to mining?

0.0

Criterion 61

Justification

There are no special protocols for investigating mining-related crimes. Depending on the classification of the crime, the applicable procedures—all established in the various laws of the Republic—may vary between the administrative and criminal spheres.

Sources

Not applicable

Does the country have bilateral or multilateral protocols or agreements in place to coordinate joint police operations for the enforcement of environmental and mining laws?

0.0

Criterion 62

Justification

There is no specific protocol in place with neighboring countries for cooperation on environmental protection and mining control.

Sources

Not applicable

M. Judicial Oversight and Jurisprudence

Score: 0.60 / 1.00

Have courts issued binding decisions related to illegal gold mining or its socio-environmental impacts in the last five years?

1.0

Criterion 63

Justification

The most notorious judicial decision of public knowledge consisted of authorizing the application of precautionary measures against people accused of practicing illegal mining in the Yapacana National Park, in the state of Amazonas.

Sources

In September 2023, the First Court of Control in Amazonas state authorized precautionary judicial measures against illegal mining in Yapacana National Park. The original text of the decision could not be found.

Have judicial decisions or jurisprudence recognizing natural ecosystems as subjects of rights generated legal restrictions, obligations, or the imposition of sanctions in legal cases related to mining activities?

0.0

Criterion 64

Justification

The 1999 Constitution recognizes the environment as a subject of rights and imposes severe restrictions, obligations, and penalties on mining activities, including illegal mining. Among the penalties provided for are the closure of operations, remediation of damages caused, and imprisonment. The Organic Law of the Environment and the Environmental Criminal Law provide the legal framework for the structuring and application of the corresponding prevention and sanctioning regulations.

Sources

Constitution of the Bolivarian Republic of Venezuela (1999). Official Gazette No. 5,453 (Extraordinary), March 24, 2000. Organic Law of the Environment. Official Gazette of the Bolivarian Republic of Venezuela No. 5,833 Extraordinary of December 22, 2006. Environmental Criminal Law. Official Gazette of the Bolivarian Republic of Venezuela Extraordinary No. 39,913 of May 2, 2012.

Can individuals or communities file collective environmental actions or constitutional remedies in mining-related cases?

1.0

Criterion 65

Justification

The Constitution and current laws guarantee the right to a safe and healthy environment and require environmental impact studies and prior consultation for extractive activities. This empowers citizens to exercise their rights through legal proceedings when any of these rights have been or could be violated.

Sources

Constitution of the Bolivarian Republic of Venezuela (1999). Official Gazette No. 5,453 (Extraordinary), March 24, 2000. Organic Law of the Environment. Official Gazette of the Bolivarian Republic of Venezuela No. 5,833 Extraordinary of December 22, 2006.

Is judicial action allowed in defense of diffuse environmental interests (such as ecosystem protection or public health) without the need to demonstrate individual harm?

1.0

Criterion 66

Justification

Venezuelan law, including the Constitution, recognizes the right to a healthy environment and establishes the civic duty to protect it. This enables legal action in the face of imminent damage or threats related to the environment and health, allowing for the application of the precautionary principle. Therefore, it is legally possible to obtain rulings that prevent intervention in a specific area due to its value to human health or ecosystems.

Sources

Constitution of the Bolivarian Republic of Venezuela (1999). Official Gazette No. 5,453 (Extraordinary), March 24, 2000. Organic Law of the Environment. Official Gazette of the Bolivarian Republic of Venezuela No. 5,833 Extraordinary of December 22, 2006.

Is there an interstate coordination mechanism for the investigation and prosecution of transboundary environmental crimes related to mining?

0.0

Criterion 67

Justification

There are no specific mechanisms addressing cross-border environmental crimes related to mining; however, international cooperation instruments could be applied in cases of crimes associated with mining activities that involve offenses of a diverse nature, such as irregular migration, arms trafficking, or human trafficking, among others. Venezuela ratified the United Nations Convention against Transnational Organized Crime (Palermo Convention) and its protocols. The instrument of ratification was deposited with the UN in 2002, and the protocols against trafficking in persons and migrant smuggling were adopted through legislation between 2001 and 2002.

Sources

Law No. 64. Law Approving the Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children, supplementing the United Nations Convention against Transnational Organized Crime. Official Gazette of the Republic of Venezuela No. 38183 of May 10, 2005. Law Approving the Protocol against the Illicit Manufacturing of and Trafficking in Firearms, Their Parts and Components and Ammunition, supplementing the United Nations Convention against Transnational Organized Crime. Official Gazette of the Bolivarian Republic of Venezuela No. 38,183 of May 10, 2005. Organic Law Against Organized Crime and Financing of Terrorism. Official Gazette of the Republic of Venezuela No. 39912 of April 30, 2012.

N. Restrictions, Law Enforcement, and Accountability

Score: 0.50 / 1.00

Does the government enforce compliance of regulations related to illegal ASM, including through sanctions for environmental damages and non-compliance?

0.0

Criterion 68

Justification

The effectiveness of joint operations and task forces in Venezuela is extremely limited. In Yapacana National Park, reports from non-governmental organizations and public pressure helped to prompt a government intervention that resulted in the expulsion of thousands of illegal miners. However, these types of interventions appear to be exceptional and do not reflect a systematic policy. The prevailing pattern is one of lax law enforcement and state inaction that allows illegal mining to expand with little deterrent capacity on the part of regulatory authorities.

State responses to environmental violations in indigenous territories have frequently taken the form of security operations carried out without prior consultation, resulting in arbitrary arrests and episodes of violence, as documented in the cases of the Yanomami people in 2022 and the Pemón people in Kumarakapay in 2019. Actions against illegal economies such as illicit mining have been characterized by high levels of impunity, limited application of effective precautionary measures and seizures, and weak investigation and prosecution of environmental damage and violence perpetrated against indigenous peoples and communities.

Sources

<https://www.forestpeoples.org/fr/publications-resources/news/article/los-yanomami-venezolanos-en-conflicto-con-mineros-ilegales/>

Can licenses be suspended or revoked in cases of environmental law violations or social violations?

1.0

Criterion 69

Justification

Mining legislation includes penalties for non-compliance with the conditions of exploitation, which include compliance with socio-environmental protection standards.

Sources

Decree No. 295 with the Rank and Force of Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999. Decree No. 1234. General Regulations of the Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela 37,155 of March 9, 2001.

Are there specific sanctions or criminal categories related to damage caused by mercury? *0.5 may be given in cases where there is general sanctions on waste disposal and environmental harm, but none directly related to mercury.

0.5

Criterion 70

Justification

There are no specific penalties related to the use of mercury beyond those applicable to the possession, use, or trade of prohibited substances. Only in cases where real and quantifiable environmental damage is demonstrated—such as the contamination of aquifers or surface waters—could monetary penalties be applied, as stipulated in the Water Law.

Sources

Organic Law of the Environment Official Gazette of the Bolivarian Republic of Venezuela No. 5,833 Extraordinary of December 22, 2006 Water Law. Official Gazette of the Bolivarian Republic of Venezuela 38595 of January 2, 2007.

Is there any legal obligation to adopt rehabilitation and/or compensation measures where environmental damage has been found?

1.0

Criterion 71

Justification

Yes. The law clearly establishes the obligation to repair environmental damage caused. Miners whose activities cause environmental damage are obligated to remediate it.

Sources

Environmental Criminal Law. Official Gazette of the Bolivarian Republic of Venezuela, Extraordinary No. 39,913, dated May 2, 2012. Organic Law of the Environment, Official Gazette of the Bolivarian Republic of Venezuela, Extraordinary No. 5,833, dated December 22, 2006

Can sanctions be applied based on remote evidence (e.g., satellite images)?

0.0

Criterion 72

Justification

It is likely that remote sensing evidence may be admissible in Venezuelan courts, although there are no explicit rules confirming this. General evidentiary principles allow for any relevant and reliable evidence, and both Venezuelan and

international NGOs routinely submit satellite analyzes documenting illegal mining and deforestation in protected areas, such as Yacapana National Park and the Orinoco Mining Arc. However, there is limited direct precedent from Venezuelan courts confirming the formal acceptance of such evidence.

Sources

Not applicable

O. Economic and Criminal Sanctions

Score: 0.75 / 1.00

Are there clear legal sanctions for environmental crimes related to ASM?

1.0

Criterion 73

Justification

There are applicable sanctions for both individuals and legal entities that have violated the Environmental Criminal Law, which defines environmental crimes. This law does not establish any exclusions or exemptions for artisanal and small-scale mining (ASM) activities or for any other type of actor.

Sources

Organic Law of the Environment, Official Gazette of the Bolivarian Republic of Venezuela No. 5,833 Extraordinary of December 22, 2006. Organic Law of Administrative Procedures, Official Gazette of the Republic of Venezuela No. 2818 Extraordinary of July 1, 1981. Environmental Criminal Law, Official Gazette of the Bolivarian Republic of Venezuela Extraordinary No. 39,913 of May 2, 2012. Decree No. 295 with the Rank and Force of Law of Mines, Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999. Decree No. 1234, General Regulations of the Law of Mines, Official Gazette of the Bolivarian Republic of Venezuela No. 37,155 of March 9, 2001.

Are criminal networks involved in illegal gold trade targeted by enforcement agencies?

1.0

Criterion 74

Justification

Venezuela's environmental enforcement framework includes both administrative and criminal mechanisms, although their practical use is limited. Under the Organic Law of the Environment, authorities such as the Ministry of People's Power for Ecosocialism, the Ministry of People's Power for the Attention of Waters and related environmental bodies can impose administrative sanctions such as purposes, suspension or revocation of permits, mandatory cleanup or remediation orders, and temporary or permanent closure of facilities that violate environmental norms. These powers are designed to enforce compliance and correct environmental harm before cases proceed administratively to court. Regulatory authorities also use environmental monitoring and inspections as part of their enforcement function. At the criminal level, Venezuela's environmental criminal law (Ley Penal del Ambiente) defines environmental offenses and sets out including penalties, fines, community service and accessory penalties when serious harm occurs. Criminal prosecutions are heard in ordinary criminal courts, and remedies ordered by judges can include mandatory restoration or remediation of environmental damage as part of sentencing. Venezuela's legal framework also allows for civil liability claims through which damaged parties can seek recovery of harm through the courts, although these are rarely pursued independently of enforcement actions.

Sources

Environmental Criminal Law. Official Gazette of the Bolivarian Republic of Venezuela, Extraordinary No. 39,913, dated May 2, 2012. Organic Law of the Environment, Official Gazette of the Bolivarian Republic of Venezuela, Extraordinary No. 5,833, dated December 22, 2006

Are economic sanctions applied to companies or individuals trading in illicit gold?

0.0

Criterion 75

Justification

In theory, it is possible. When the existence of illegal gold trafficking or trade is proven, administrative and criminal action is taken against the individuals or legal entities involved. When the illicit nature of the gold can be determined, it is seized by the authorities and treated as contraband. It is important to remember that in Venezuela, all gold trading is the exclusive prerogative of the State.

Sources

Decree No. 295 with the Rank and Force of Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999. Decree No. 1234. General Regulations of the Law of Mines. Official Gazette of the Bolivarian Republic of Venezuela 37,155 of March 9, 2001.

Can environmental and mining authorities impose sanctions independently of a criminal process (administrative sanctions)?

1.0

Criterion 76

Justification

Yes. In fact, administrative sanctions are the most common and predictable in this area. Applicable measures include the seizure of equipment, the impounding of transport vehicles, and the closure of businesses, all of which are administrative in nature. Generally, administrative sanctions are the first to be applied and may be accompanied by criminal proceedings; these two types of sanctions are not mutually exclusive.

Sources

Organic Law of the Environment, Official Gazette of the Bolivarian Republic of Venezuela No. 5,833 Extraordinary of December 22, 2006. Organic Law of Administrative Procedures, Official Gazette of the Republic of Venezuela No. 2818 Extraordinary of July 1, 1981. Environmental Criminal Law, Official Gazette of the Bolivarian Republic of Venezuela Extraordinary No. 39,913 of May 2, 2012. Decree No. 295 with the Rank and Force of Law of Mines, Official Gazette of the Bolivarian Republic of Venezuela No. 5382 Extraordinary of September 28, 1999. Decree No. 1234, General Regulations of the Law of Mines, Official Gazette of the Bolivarian Republic of Venezuela No. 37,155 of March 9, 2001.

Amazon Mining Policy Scoreboard

Led by Amazon Conservation Association · amazonconservation.org

In collaboration with: Pulitzer Center · Rainforest Investigations Network · Earth Genome